

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Sarah Carrillo

Department 2

August 28, 2026

8:30 am

DA Case #

Date Filed

3 CV68318

Denise Renee Cargill vs. Wal-Mart Associates Inc et al

04/14/2026

Denise Renee Cargill

Attorney: Yet Not Entered

Wal-Mart Associates Inc

Megan Bally

Demurrer

Case Management Conference

04/14/2026 Complaint

File Tracking

04/17/2026 High Density

This is a "hostile" workplace action. Before the Court this day is a demurrer to plaintiff's fifth cause of action for harassment under FEHA.

Under the FEHA, an employer is prohibited from harassing an employee based on a protected characteristic. See Govt. Code §12940. Unlike discrimination claims, "harassment often does not involve any official exercise of delegated power on behalf of the employer," but rather "focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee." *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 706. To prevail on a harassment claim based on a hostile work environment, the plaintiff must show: (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. The conduct must be severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees. It must be more than annoying, and it cannot be occasional, isolated, sporadic, or trivial. However, a single incident of harassing conduct is sufficient to create a triable issue "if the conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." Govt. Code §12923(b); in accord, *Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238; *Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581; *Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 940.

On a demurrer, the Court is obliged to accept as true all adequately pled facts, even if those facts might be subject to differing interpretations by the ultimate trier of fact. Plaintiff avers in pertinent part that defendant(s) repeatedly pulled away or moved plaintiff's chair while she was working when she was authorized to have a chair as an accommodation. Plaintiff avers that she was injured on the job, required surgery, and ultimately some accommodation. Though her knee/back pain were arguably distinct from the injuries subsumed within the workers compensation claim, it was apparently known amongst the supervisors that plaintiff needed a chair from time to time. Given that she was assigned to the "self-check" and "receipt checker" positions, the question is why was the stool/chair repeatedly moved away from plaintiff. There may be a valid business reason, but defendant will need to offer such reason in opposition to the claim by filing an Answer to the Complaint.

Demurrer overruled. Defendant to answer in 10 days.